

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF LOUISIANA
NEW ORLEANS DIVISION

CLEM D. DALRYMPLE	*	CIVIL ACTION: 2:18-cv-14237
	*	
V.	*	
	*	
THE UNITED STATES POSTAL SERVICE	*	
JONATHAN JONES	*	
	*	
* * * * *	*	

THIRD SUPPLEMENTAL AND AMENDED COMPLAINT

NOW INTO COURT, through undersigned counsel, comes Plaintiff, Clem D. Dalrymple, who files this Third Supplemental and Amended Complaint, to supplement and amend his original Complaints to read as follows:

I.

Plaintiff, Clem D. Dalrymple, wishes to supplement his Complaint to add as an additional party, Amazon.com, Inc.

II.

Made additional party defendant herein is Amazon.com, Inc., an American Multinational Technology Company, based in Seattle, Washington, licensed to do and doing business within the State of Louisiana, at all pertinent times hereto.

III.

Jonathan Jones, the employee of The United Postal Service, who caused the accident that forms the basis of this claim, was on a mission for or acting as an agent for Amazon.com, Inc. delivering packages for Amazon.com, Inc., pursuant to the "Shipping Services Contract," which was in existence between Amazon.com, Inc. and The United States Postal Service.

IV.

At all pertinent times hereto, there was in force and effect, a "Shipping Services Contract" between The United States Postal Service and Amazon.com, Inc., which Contract created duties and responsibilities by The United States Postal Service and Jonathan Jones, for which Amazon.com, Inc. is liable due to the terms of the "Shipping Services Contract."

V.

The "Shipping Services Contract" is the Law between the parties.

VI.

Amazon.com, Inc. was negligent in the following non-exclusive list of particulars:

- a. Failing to properly train The United States Postal Service and individuals such as Jonathan Jones;
- b. Failing to provide Training Materials to The United States Post Office and individuals such as Jonathan Jones;
- c. Failing to require that The United States Post Office and individuals such as Jonathan Jones follow the Louisiana Traffic Laws;

- d. Amazon.com, Inc. could have prevented the act which caused the damage, but they failed to do so;
- e. Such other act of negligence will be shown at the trial of this cause.

VII.

Pursuant to the Terms and Conditions of the "Shipping Services Contract," a master servant relationship was created under La. Civil Code Article 2320, such that Amazon.com, Inc., the Master, had the right to control the work of a servant, Jonathan Jones and The United States Postal Service, but failed to do so.

VIII.

Amazon.com, Inc. had the authority under the "Shipping Services Contract" to have prevented the act which caused the damage, but they failed to do so.

IX.

Amazon.com, Inc. reserved the right to supervise or control the work of The United States Postal Service and individuals such as Jonathan Jones, pursuant to the "Shipping Services Contract."

X.

Amazon.com, Inc. is legally responsible for The United States Postal Service and Jonathan Jones, because of their failure to exercise adequate and proper supervision, care or guardianship, as established by the legal relationship between Amazon.com, Inc. and The United States Postal Service and Jonathan Jones as detailed in the "Shipping Services Contract" and in failing to prevent The United States Postal Service and Jonathan Jones from causing harm or injury to others.

XI.

Amazon.com, Inc. is liable pursuant to the "Shipping Services Contract" because of the fault of Jonathan Jones in making a U-turn from the shoulder of Hwy 22 without any indication that he was about to do so, and at such close proximity to Clem Dalrymple's motorcycle, who was legally traveling along the highway and the accident could not be avoided.

XII.

Pursuant to the "Shipping Services Contract," Amazon.com, Inc. exercised control over The United States Postal Service and Jonathan Jones, in that Amazon.com, Inc. exercised control over compensation, status, performance of the specific mission, in delivering of the packages on a Sunday afternoon, i.e., all of which served as a direct benefit to Amazon.com, Inc.

XIII.

Pursuant to the "Shipping Services Contract" Amazon.com, Inc. had the right of control over the work of Jonathan Jones.

XIV.

Under the facts of this case, Jonathan Jones qualifies as a borrowed servant of Amazon.com, Inc. pursuant to the "Shipping Services Contract."

XV.

Amazon.com, Inc. exercised express and implied authority over Jonathan Jones at all pertinent times hereto, and in particular, at the time of the accident, which was, caused in fact, by Jonathan Jones, as vested under the "Shipping Services Contract."

XVI.

Amazon.com, Inc. acted in a manner such as to manifest Jonathan Jones with apparent authority to deliver Amazon.com, Inc.'s packages on a Sunday afternoon, pursuant to the "Shipping Services Contract."

XVII.

Amazon.com, Inc. owed a duty to Clem Dalrymple pursuant to the "Shipping Services Contract" and they breached that duty.

XVIII.

Amazon.com, Inc. is liable to the Plaintiff for the acts committed by Jonathan Jones while acting with the course and scope of authority granted Jonathan Jones pursuant to the "Shipping Services Contract."

XIX.

The remainder of the allegations contained within the original Complaint, the First Supplemental and Amended Complaint and the Second Supplemental and Amended Complaint are reiterated herein, as though copied herein *in extenso*.

WHEREFORE, Plaintiff, Clem Dewayne Dalrymple, prays that after due proceedings had, there be judgment herein in his favor and against this defendants, The United States of America and Amazon.com, Inc., for all sums due and owing, including general damages, medical specials, loss of income, disfigurement, pain and suffering, permanent disability, and loss of enjoyment of life, together with all costs of these proceedings and interest from date of judicial demand.

Respectfully submitted,
BOGGS, LOEHN & RODRIGUE

/s/ THOMAS E. LOEHN
THOMAS E. LOEHN (#8663)
2324 Severn Avenue, Suite 100
Metairie, Louisiana 70001
Telephone: (504) 828-1202
Facsimile: (504) 828-1208
Email: tloeHN@yahoo.com
Counsel for Plaintiff, Clem D. Dalrymple

CERTIFICATE OF SERVICE

I certify that a copy of the foregoing pleading has been served upon all counsel of record receiving a hard copy by Certified Mail, Return Receipt Requested by first-class mail to non-CM/ECF participants, this 26th day November, 2019.

/s/ THOMAS E. LOEHN